

Call for Registrations of Interest

Speech to Text Solution

Ref#: 01674

ROI released: 18 05 26

Respondent Briefing: 11am 25 05 26

Deadline for Questions: 5pm 12 06 26

Deadline for Registrations: 3pm 17 06 26

Ministry of Justice
19 Aitken Street
Wellington 6011

Contents

This opportunity in a nutshell 3

SECTION 1: Key information 4

SECTION 2: Our Requirements 6

SECTION 3: Our Evaluation Approach.....14

SECTION 4: ROI Process, Terms and Conditions16

This opportunity in a nutshell

What we need

The Ministry of Justice is seeking Registrations of Interest from suppliers capable of delivering an end-to-end Speech-to-Text (StT) Solution to support court and judicial transcription workflows across New Zealand.

This ROI is not seeking a stand-alone StT engine; it is seeking the surrounding service capability to run StT safely and consistently for the Ministry (including secure ingestion, workflow, quality controls, auditability, support, and continuous improvement).

The solution will be used to generate timely, usable draft transcripts from court and dictation audio, which are then reviewed, edited and finalised by Ministry staff. The Ministry is not seeking to fully automate transcription, but to enable a human-in-the-loop operating model that improves efficiency, turnaround times, and sustainability of transcription services.

The service will process, store and/or transmit Court and judicial information (including audio and draft transcript content) and must be suitable for highly sensitive and regulated environments.

This ROI is the first stage of a multi-stage procurement process and is intended to identify suppliers with the capability, experience and capacity to progress to a subsequent Request for Proposal (RFP).

What we don't want

Out of scope for this ROI and the anticipated procurement are:

- Outsourcing of final transcript production or judicial decision-making
- Changes to in-court audio capture hardware
- Stand-alone StT engines or APIs without the operational, workflow, governance and support capability needed for an end-to-end service

What's important to us

The Ministry is seeking suppliers that can demonstrate:

- Proven StT capability in complex, sensitive or regulated environments
- Strong security, privacy and data sovereignty practices suitable for judicial information
- Scalable, cloud-based delivery models
- Solutions that integrate with existing workflows and minimise disruption to judges and court staff

Evaluation will focus on capability, experience, and approach, rather than detailed technical design or pricing at this stage.

Why should you bid?

This procurement represents an opportunity to:

- Partner with the Ministry of Justice on a national, high-impact digital service
- Contribute to improved access to justice and judicial efficiency
- Work within a structured, staged procurement process that supports innovation while managing risk
- Help shape a future-focused service that will evolve over time

A bit about us

The Ministry of Justice delivers court and tribunal services, supports the judiciary, administers justice sector legislation, and provides policy advice to Government. The Ministry is committed to modernising its services in a way that supports judicial independence, access to justice, and public trust.

SECTION 1: Key information



1.1 Context

- a. This is an invitation to suitably qualified suppliers to submit a Registration for the Speech to Text Solution contract opportunity.
 - b. This ROI is the first step in a multi-step procurement process. Following evaluation shortlisted Respondent/s will be invited to submit a full proposal in response to a Request for Proposals (RFP). This document deals only with the first step i.e. the ROI process.
 - c. Words and phrases that have a special meaning are shown by the use of capitals e.g. Respondent, which means ‘a person, organisation, business or other entity that submits a Registration in response to the ROI. The term Respondent includes its officers, employees, contractors, consultants, agents and representatives. The term Respondent differs from a supplier, which is any other business in the market place that does not submit a Registration.’ Definitions are at the end of [Section 4](#).
-



1.2 Our timeline

- a. Here is our timeline for this ROI.

Step in ROI process:	Date:
ROI released	18 05 26
Respondent Briefing	25 05 26
Deadline for Questions from suppliers:	12 06 26
Deadline for the Buyer to answer supplier's questions:	15 06 26
Deadline for Registrations:	3pm 17 06 26
Successful/unsuccessful Respondents notified of shortlisting decision:	02 07 26
RFP released to shortlisted supplier/s:	week starting 03 07 26

- b. All dates and times are dates and times in New Zealand.
-



1.3 How to contact us

- a. All enquiries must be directed to our Point of Contact. We will manage all external communications through this Point of Contact.
 - b. **Our Point of Contact**
Name: Greg Kirton
Title/role: Portfolio Lead – Business Services, Sourcing and Commercial Management
Email address: Procurement@Justice.govt.nz
 - c. To register for our Respondent briefing session, contact our Point of Contact via GETS or email.
-



1.4 Developing and submitting your Registration

- a. This is an open, competitive tender process. The ROI sets out the step-by-step process and conditions that apply.
- b. Take time to read and understand the ROI. In particular:
 - i. develop a strong understanding of our Requirements detailed in [Section 2](#).
 - ii. in structuring your Registration consider how it will be evaluated. [Section 3](#) describes our Evaluation Approach.
- c. For helpful hints on tendering and access to a supplier resource centre go to: www.procurement.govt.nz/for-suppliers.

-
- d. If anything is unclear or you have a question, ask us to explain. Please do so before the Deadline for Questions. Email our [Point of Contact](#).
 - e. In submitting your Registration you must use the Response Form on GETS. This is a Microsoft Word document that you can download.
 - f. You must also complete and sign the declaration at the end of the Response Form.
 - g. The Ministry will use a two-envelope (two-part) submission process for this ROI. Respondents must submit their Registration as two separate documents, uploaded via GETS as part of a single Registration submission.
 - h. Check you have provided all information requested, and in the format and order asked for.
 - i. Having done the work don't be late – please ensure you get your Registration to us before the Deadline for Registration!
-



1.5 Address for submitting your Registration

- a. Registrations must be submitted electronically via GETS.
 - b. Registrations sent by post or fax, or hard copy delivered to our office, will not be accepted.
-



1.6 Our ROI Process, Terms and Conditions

- a. The ROI is subject to the government's standard ROI Process, Terms and Conditions (shortened to ROI-Terms) described in Section 4. We have not made any variation to the ROI-Terms.
-



1.7 Later changes to the ROI or ROI process

- a. If, after publishing the ROI, we need to change anything about the ROI, or ROI process, or want to provide suppliers with additional information we will let all suppliers know by placing a notice on the Government Electronic Tenders Service (GETS) at www.gets.govt.nz
 - b. If you downloaded the ROI from GETS you will automatically be sent notifications of any changes through GETS by email or not applicable if ROI is not loaded onto GETS
-

SECTION 2: Our Requirements

2.1 Background

The Ministry currently relies on highly manual transcription processes to support court operations and judicial decision-making. Demand for transcription has increased significantly, while the ability to scale manual effort has not.

The Ministry has undertaken discovery, business analysis and market engagement to identify how StT technology can be used to reduce manual effort, improve timeliness, and support more sustainable transcription workflows, while retaining appropriate human oversight and quality control.

This procurement seeks to establish a StT solution that supports both in-court transcription managed by the National Transcription Service and judicial dictation workflows managed by Judicial Associates and Personal Assistants.

2.2 What we are buying and why

Through this ROI, the Ministry is seeking to select and engage one (Preferred) or more suppliers to provide and implement a managed, cloud-based StT service that enables the production of timely, accurate and usable draft transcripts from Ministry audio sources, integrated into Ministry transcription workflows.

For avoidance of doubt, the Ministry is seeking the end-to-end capability to operate StT as a service (including intake and management of audio and transcript artefacts, workflow and exception handling, identity and access controls, reporting, support and service management), not just transcription accuracy.

The Ministry is seeking to buy an end-to-end managed service for draft transcript production, including (as applicable):

- secure ingestion of audio from various approved file types, sources and repositories;
- automated generation of draft transcripts suitable for court and judicial working environments;
- workflow capability to support routing, queueing, exception handling, audit trails and operational reporting;
- integration with the Ministry's identity/access controls and nominated business systems as required (including Tuhi and Ministry storage channels); and
- ongoing service operation, monitoring, support, upgrades and continuous improvement.

The Ministry will retain overall ownership, accountability, and responsibility for the final produced transcript, consistent with the human-in-the-loop operating model.

The required solution will:

- be offered as a cloud based, managed service.
- be delivered primarily as a configurable commercial off-the-shelf service (minimising bespoke build) and be extensible to additional Ministry transcription use cases over time.
- meet the Ministry's requirements for security, privacy, information management, auditability and data sovereignty, including appropriate hosting/processing arrangements.

The Ministry's preferred outcome is the selection of a single solution capable of delivering the required end-to-end capabilities. Where a single solution cannot reasonably meet all required capabilities, the Ministry may consider a small number of complementary solutions, provided clear end-to-end accountability, integration, and operational coherence can be maintained.

The procurement will seek solution provider led responses, where the supplier is accountable for delivery, integration, and ongoing operation of the solution. Where multiple parties propose to implement the same solution, preference will be given to responses led by the solution provider.

2.3 Business Context

People

The current transcription operating model is highly people dependent, with a significant proportion of value delivered through manual effort and specialist human capability rather than automation.

- **National Transcription Service (NTS) Court Reporters** - Court Reporters within the National Transcription Service are responsible for producing formal court transcripts from recorded courtroom audio. This involves manually accessing audio recordings, replaying proceedings, and typing transcripts in accordance with established judicial standards and formatting requirements. Court Reporters also undertake quality assurance activities and manage rework where accuracy or completeness issues arise.

The increasing volume and complexity of court events has placed sustained pressure on Court Reporters, with manual transcription effort remaining the primary constraint on turnaround times. The current operating model requires Court Reporters to spend a significant proportion of their time on low value mechanical transcription tasks, limiting capacity to focus on higher value review, quality assurance, and complex proceedings.

- **Judicial Associates (JAs) and Personal Assistants (PAs)** - JAs and PAs support judges through in-chambers dictation and transcription workflows, including the preparation of reserved judgments and other dictated material. Audio is captured using dictation devices and processed through legacy dictation tools, with transcription again performed predominantly through manual typing.

This model creates a parallel transcription workload outside of NTS, with JAs and PAs undertaking transcription activity in addition to their broader support responsibilities. As judicial workloads increase, this manual transcription requirement has become increasingly burdensome, contributing to inefficiency and diverting time away from core judicial support activities.

- **Judges** - Judges interact with the current transcription model primarily as consumers of transcripts rather than operators of the technology. In-court processes rely on the availability of transcripts produced by NTS, while in-chambers dictation workflows depend on manual transcription by support staff.

The current model requires judges to wait for transcription outputs before progressing decisions, particularly where aide memoire or draft materials would be sufficient but are delayed by manual production processes. This misalignment between judicial needs and transcription capability has been identified as a key driver for change.

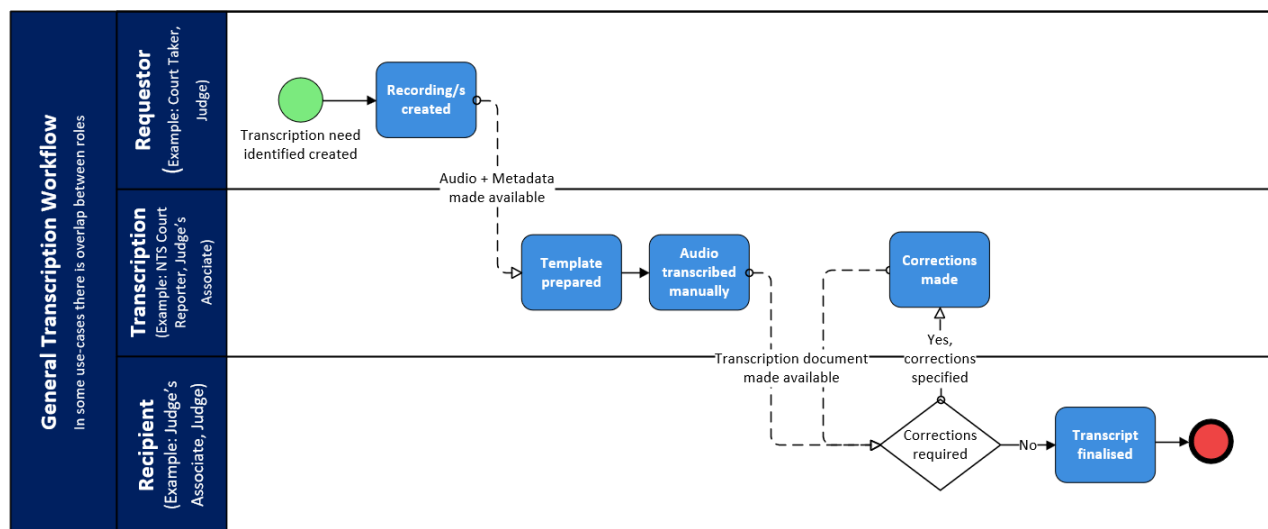
- **Digital and Support Staff** - Digital and support teams support the underlying technology platforms used for transcription and dictation, including legacy systems that are now end-of-life. Support effort is focused on keeping ageing technology operational, managing integrations between disparate systems, and responding to incidents rather than enabling continuous improvement or innovation.

Because the current operating model is fragmented, support responsibilities are spread across multiple teams and suppliers, increasing complexity and operational risk. There is limited opportunity within the current model to reduce support overhead without materially changing the way transcription is produced.

The current people centric operating model has reached a point where additional demand cannot be met sustainably through current staffing levels alone. Any future solution must therefore rebalance the operating model by reducing manual effort, while preserving human oversight, quality, and judicial confidence.

Processes

All processes are managed internally by the applicable business units. The current process for how transcriptions are created and the systems the Court Reporters interact with are shown in the diagram below:



Currently, a written transcript is created by manually typing what is being said from the recorded audio. This is the primary method used by the National Transcription Service (NTS) to produce transcripts of proceedings for Courts and Tribunals.

On average across all New Zealand jurisdictions, it takes 2.7 hours to transcribe 1 hour of audio. The effort to manually type has increased over the last 5 years due to several factors such as an increase in the complexity of the cases, number of words spoken per audio hour, reduction of audio quality and increased over speaking.

A transcription is supported by a judicial direction, which is provided for under a service level agreement for individual transcript type and often linked to legislative requirements. The transcript request (TR) is raised in Tuhi (NTS workflow solution) and is automatically allocated to an available Court Reporter (CR) to transcribe. Depending on the TR type, required turnaround time of the request and length of audio there may be multiple court reporters working on one transcription request to meet the required deadlines. The number of Court Reporters required on a TR is determined by the lead CR and/or by the NTS workflow team.

The Court Reporter will find the relevant 5-minute chunk of court audio they are assigned to, from a shared-drive repository and start to manually type into an appropriate template, indicated by the business rules and judiciary direction. There are two types of transcription requests:

- **Realtime** – the audio is transcribed in near realtime. The transcript must be back to the court within 30 minutes of the spoken word.
- **Non-Realtime** – the audio is transcribed after the fact. These types of requests have various turnaround times depending on the jurisdiction.

Once the transcript has been completed it will be sent to the requester via email, attached to the job in Tuhi or uploaded to the Judicial Decision Interface (JDI), depending on the nature of the transcript.

The current annual transcription volumes can be broken down as follows:

- 33,750 audio hours transcribed (comprised of 18,408 RT and 15,342 NRT hours).

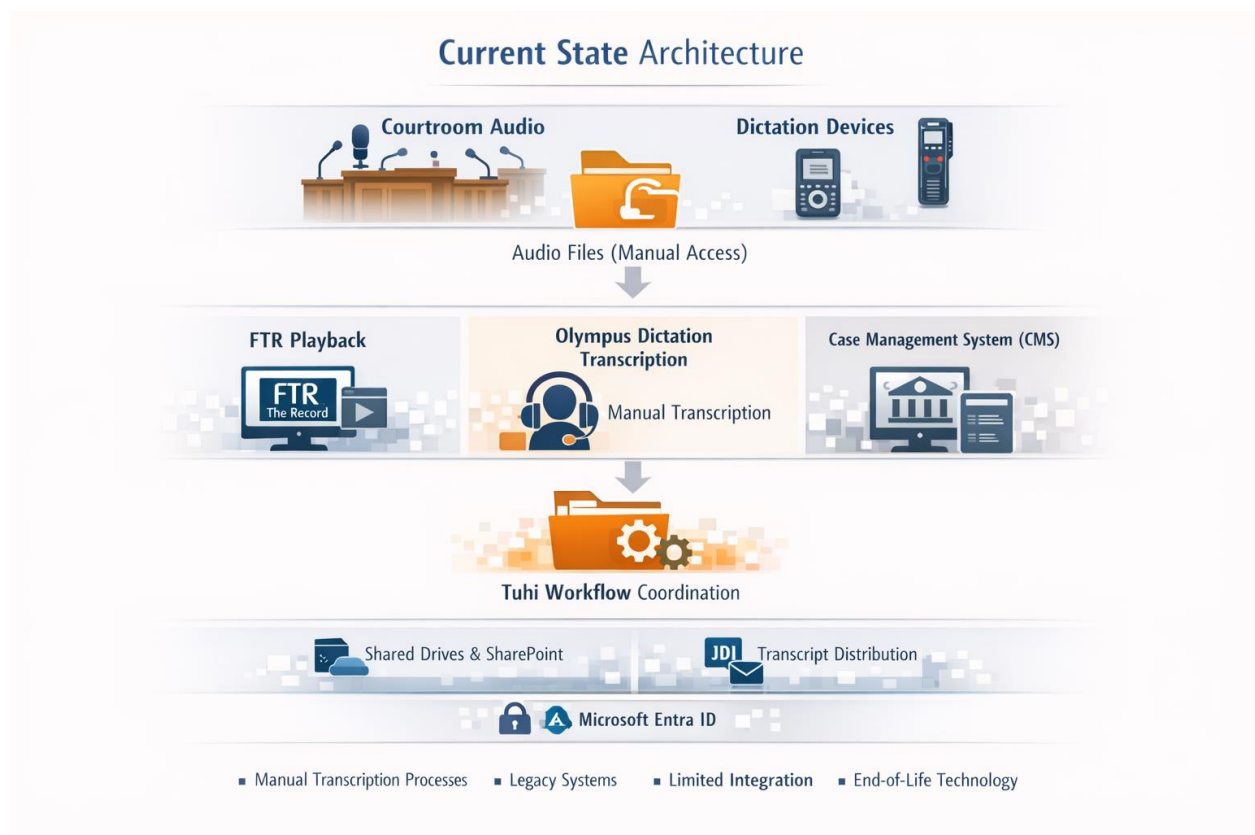
- Approximately 978,750 pages (comprised of 533,832 RT and 444,918 NRT).
- Approximately 79,862 Transcription Requests (jobs) (comprised of 2,339 RT and 77,523 NRT).

As an indication of scale there is potential for approximately 900 hours of audio in any 24-hour period.

The Ministry also currently offers a bureau service to the Independent Police Conduct Authority (IPCA) and the New Zealand Parole Board. NTS transcribes approximately 100 hours of audio per year for IPCA and approximately 1,000 hours per year for the Parole Board. Over time, there may be opportunities to expand this service to Justice sector partners or other government agencies.

Technology

The current transcription environment within the Ministry is characterised by multiple discrete systems, manual handoffs, and high reliance on human transcription effort. StT capability is limited, fragmented, or experimental, and core transcription workflows rely heavily on legacy tools and manual processes.



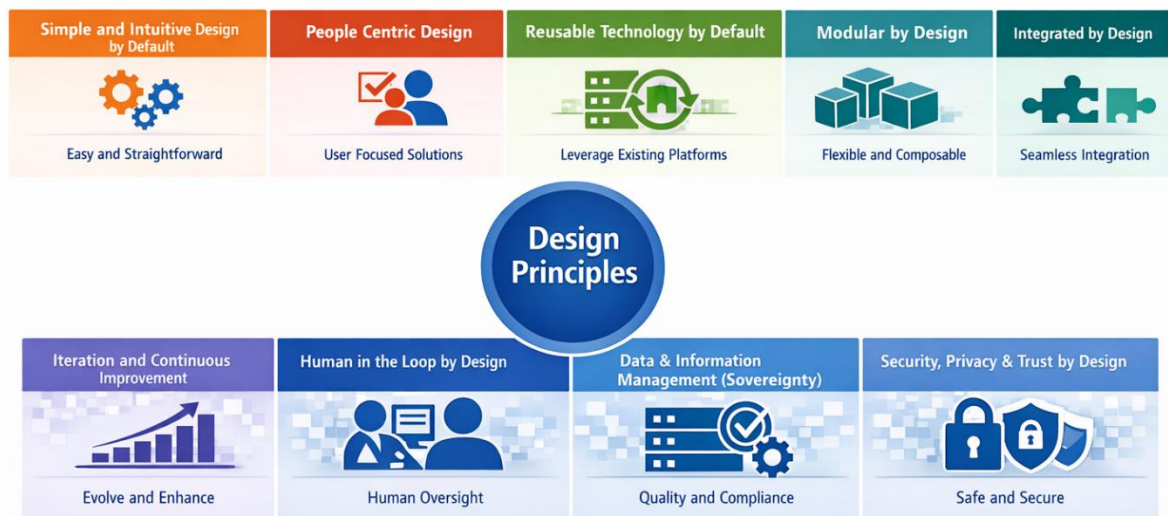
Audio is captured through courtroom recording systems and dictation devices, then manually accessed, reviewed, and transcribed by staff using a combination of legacy software, shared file locations, and downstream systems for distribution. Integration between systems is limited, with much of the workflow coordination occurring outside of technology platforms. The following table provides an overview of the current architectural components:

Architectural Component	System	Description
Audio Capture and Sources	For The Record (FTR)	Courtroom audio systems record hearings and events.
	Dictation Devices (e.g., Olympus)	Dictation devices (e.g. Olympus hardware) are used for in-chambers dictation and reserved judgments.
	MS Teams (MP4)	Some Tribunals and other courts use MS Teams to record hearings.

Architectural Component	System	Description
Audio Access and Playback	For The Record (FTR)	- For The Record (FTR) is used by Court Reporters to listen to and review recorded courtroom audio. - Audio files are produced in 5-minute chunks, which are then accessed manually for transcription purposes.
	Express Scribe	Playback all non FTR files. MS teams MP4 files and off-site audio provided as MP3 files.
Transcription and Dictation Tools	MS Word	MS word is used by Court Reporters to complete the transcriptions into word templates. Templates can be through JDI application or a shared folder.
	Olympus Dictation & Transcription Service (ODMS R7)	Olympus Dictation and Transcription Service (ODMS Release 7) supports dictation workflows for Judicial Associates and Personal Assistants.
	Dragon Naturally Speaking	Dragon Naturally Speaking is used for single speaker dictation by the Judiciary.
	Kaituhi	Kaituhi covers Te Reo Maori StT solution, this is currently deployed as a limited use-case for Te Reo transcription requests only.
	Blue Monkey (Current Trial)	Blue Monkey is a Ministry developed bespoke solution, which automates the input of audio and output of the transcript into the appropriate template. This solution is temporary and has limited scope for improvement.
Workflow Coordination	SS&C Chorus BPM v23.1.2.5 (Tuhi)	- Tuhi is used to manage transcription requests and workflow initiation for NTS managed transcripts. - Much of the end-to-end workflow relies on manual coordination between systems and teams.
Case and Contextual Information	Case Management System (CMS)	- Case Management System (CMS) is used by Court Reporters to confirm case details relevant to transcription. - Case metadata is referenced manually alongside audio and transcription outputs.
Storage and Distribution	Judicial Decisions Interface (JDI) Shared Network Drives / SharePoint Email / Ministry Email Services	- Audio files and draft transcripts are stored on shared network drives and/or SharePoint. - Final transcripts are distributed via: - Judicial Decisions Interface (JDI), and - Ministry email services, depending on use case.
Identity, Security, and Access	Microsoft Entra ID (Azure AD)	- Authentication and access control are managed via Microsoft Entra ID (Azure AD). - Security and privacy controls are applied at the system and file access level rather than end-to-end workflow level.

2.4 Design Principles

The following design principles have been developed to support the markets understanding of the Ministry's expectations for the service:



- **Simple and intuitive design by default:** The default experience for end-users should always be as simple and straight-forward as it can be. More complex or advanced settings or configurations may be available for users but should not be exposed by default interfering with the user experience.
- **People centric design:** Digital services will be fundamentally designed around how users operate in practice, enabling staff to meet core business needs efficiently while ensuring usability, accessibility, and trust. The people needs and business needs drive what technology is needed to reach the outcome.
- **Reusable technology by default:** Technology systems will prioritise the use of existing technology platforms, capabilities and data within the Ministry's environment where possible to consolidate application/platform complexity and cost. The Solution must demonstrate reusability of platforms, patterns and data assets.
- **Integrated by design:** Solutions will be designed to integrate cleanly and cohesively with the existing technology landscape, supporting end-to-end business processes and workflows. This reduces the number of siloed systems, isolated processes and unnecessary manual business tasks. Where possible, the solution must adopt Ministry integration standards, and modern interoperability patterns to ensure future connectivity across the justice sector.
- **Modular by Design:** The procurement is designed to support a modular service model, with core components such as StT processing, workflow, integrations, and human review kept loosely coupled rather than delivered as a bespoke, monolithic solution. The Ministry will prioritise configurable, commercial off-the-shelf capabilities over custom development, enabling components to be updated or replaced over time without compromising delivery or requiring wholesale re-procurement.
- **Iterative and Continuous Improvement:** Solutions will be designed to support ongoing improvement and growth, allowing capability, accuracy, and performance to evolve and improve over time as the underlying technology matures.

- **Human-in-the-loop by design:** The Ministry is not seeking to replace staff with the solution but enable the staff to meet the business needs more effectively. A human will always be in the workflow of producing a transcript to review and amend as needed before a finalised publishable transcript is created.
- **Data & Information Management and Sovereignty:** Solutions must manage information in a way to ensure quality, discoverability, appropriate access, compliance with the Public Records Act, and alignment with Māori data sovereignty expectations. Digital information must be digital by design, with paper by exception.
- **Security, Privacy & Trust by Design:** Where possible, solution must embed security, privacy, and trust-by-design principles, aligning with Ministry security standards and enabling safe use of information across systems and channels. The solution must be designed and operated to protect Court information end-to-end (ingestion, processing, storage, access, audit logging, and deletion/retention).

2.5 Hosting jurisdiction preference

Because the service will handle Court and judicial information, the Ministry has a strong preference for all service data (including audio and draft transcripts) to be hosted and processed in New Zealand or Australia.

If a Respondent proposes any other hosting or processing location (including for support or administration access), this will require further consideration through the Ministry's information governance processes and must be supported by clear risk mitigations and appropriate contractual safeguards.

Hosting and tenancy arrangements will be assessed proportionately, noting that the service outputs are intended to support draft transcription workflows and do not in themselves constitute final judicial records.

2.6 Key Outcomes

Through this procurement, the Ministry is seeking a StT solution that supports the following intended outcomes.

- **Outcome 1: Timely and usable draft transcripts to support court and judicial decision-making**
The Ministry intends to achieve fast access to accurate and usable draft transcripts from court and judicial audio. This includes near real-time or rapid turnaround outputs where appropriate, while ensuring draft transcripts are of sufficient quality to support judicial and court purposes prior to human review and finalisation.
- **Outcome 2: Consistent transcript quality supported by a human-in-the-loop operating model**
The Ministry intends to maintain judicial confidence and transcript quality through a human-in-the-loop operating model. The solution should support an effective balance between speed and accuracy, enabling human review, editing, and quality assurance. Responsibility for final transcript content will remain with the Ministry.
- **Outcome 3: Reduced manual effort and improved efficiency across transcription workflows**
The Ministry intends to reduce manual typing and administrative effort across transcription workflows, including those used by the National Transcription Service, Judicial Associates, and Personal Assistants. This is expected to enable staff to focus on higher-value review, quality control, and exception-handling activities.
- **Outcome 4: Scalable and sustainable service aligned to future needs**
The Ministry intends to establish a secure, scalable, and sustainable StT service delivered as a managed, cloud-based solution. The service should be capable of evolving over time, avoid

unnecessary bespoke build, and align with the Ministry's digital, information, security, and data sovereignty expectations.

2.7 Contract Term

The Ministry anticipates that any resulting contract would commence following completion of the RFP, pilot, and negotiation stages.

The anticipated initial contract term is up to two years, with options to extend up to a maximum of 10 years, subject to performance, ongoing business need and technology advancement.

2.8 Justice Sector Collaboration

This is a single-agency procurement led by the Ministry of Justice. However, the Ministry works closely with its justice sector partners and engages regularly across the justice system to support alignment and shared outcomes.

Accordingly, information generated through this procurement process (excluding pricing) may be shared with justice sector partner agencies (NZ Police and Department of Corrections) to support collaboration, insight, and potential future service considerations. Information sharing will occur in a controlled manner and in line with relevant legal, privacy, confidentiality and information management obligations.

2.9 Other Tender Documents

These documents have been uploaded on GETS and are available to Respondents – they form part of this ROI. These include:

Document	Section	Description	Action Required
This Document	ROI Document	Provides an introduction to the ROI. Sets out the background to the ROI and provides context to what's required from the Respondent.	Information only
Appendix 1.	ROI Response Form	Provides response instructions and seeks a response to initial information requirements.	Response required
Appendix 2.	Indicative Pricing Response Form	Seeks an indicative order of magnitude cost view to inform affordability, and commercial risk assessment.	Response required, please submit as a separate file to your ROI response form.
Appendix 3.	Contract Principles	Provides indicative contract principles for the Respondent review and comment on as part of the Response Form.	Response required as part of response to Appendix 1

SECTION 3: Our Evaluation Approach

3.1 Sourcing Approach

The Ministry is using a multi-stage, open and competitive sourcing approach for this procurement.

The process will commence with this Registration of Interest (ROI), which is intended to identify suppliers with the capability, experience, and capacity to deliver a StT solution in a complex and sensitive operating environment. Evaluation at this stage will focus on capability, experience, and approach, rather than detailed solution design or firm pricing.

Following the ROI, the Ministry may invite shortlisted Respondents to participate in a subsequent Request for Proposal (RFP) stage. The RFP is expected to seek more detailed information on solution design, delivery approach, commercial arrangements, and implementation planning.

The Ministry may also, where appropriate, undertake workshops, or pilot activities to validate solution fit and operational performance prior to contract award.

Progression between stages is at the Ministry's discretion and does not create any obligation to proceed to subsequent stages or to award a contract.

3.2 Evaluation model

The evaluation model to be used for this ROI is a weighted attribute model.

A two-envelope system will be used for the evaluation. Respondents must provide all information relating to indicative pricing, expenses and costs in a separate soft copy file.

The evaluation panel will first evaluate and score each Registration against the weighted criteria set out below. Following completion of the non-price evaluation, the indicative pricing information will be provided to the evaluation panel.

Indicative pricing will not be weighted or scored as part of the ROI evaluation. However, it may be considered by the Ministry as part of its shortlisting decision to assess affordability, scope alignment, and whether the proposed commercial approach appears broadly consistent with the Ministry's requirements. Detailed pricing and value-for-money assessment will occur at the RFP stage.

3.3 ROI Evaluation Process

The evaluation process will be as follows:

- a. Following the tender close date responses will be checked for compliance.
- b. Panel members will conduct an individual evaluation of all responses.
- c. The evaluation panel may then meet to moderate the scores and to agree on a short list if required.
- d. The intention of the moderation process is to ensure the evaluation panel members:
 - have taken into account all relevant information provided by Respondents
 - have a consistent understanding of the Respondents answers
 - discuss and understand any variances in scoring
- e. A short list of Respondent(s) may be invited to participate in a subsequent RFP process.

The Ministry may set aside responses in the following instances:

- where proposals score 4 or below according to the rating scale following moderation of any individual criteria;
- if the Ministry in its reasonable opinion considers it will not be able to negotiate an acceptable contract;

- where indicative pricing assumptions appear materially misaligned with the stated scope or proposed delivery model, indicating affordability or solution-fit risks. Detailed value for money assessment will occur at the RFP stage;
- in respect of all criteria that are “not weighted”, where the Ministry identifies any material risk in the response.

3.4 Evaluation criteria

Registrations will be evaluated on their merits according to the following evaluation criteria and weightings.

In respect of all criteria that are “not weighted”, you will need to provide sufficient information to enable the Ministry to assess any risks associated with your Registration.

Criterion	Weighting
1. Functional Solution Fit	35%
2. Security & Privacy Compliance	15%
3. Operational Capability	20%
4. Integration Approach	10%
5. Supplier Viability and Track Record	10%
6. Economic Benefits	10%
7. Contract Principles	Not Weighted
8. Price (Indicative costs sizing), please respond using the form in Appendix 2	Not weighted
Total weightings	100%

Scoring

The following scoring scale will be used in evaluating Registrations. Scores by individual panel members may be modified through a moderation process across the whole evaluation panel.

10	EXCELLENT	Exceeds the criterion. Exceptional demonstration by the Respondent of the relevant ability, understanding, experience, skills, resource and quality measures required to meet the criterion. Proposal identifies factors that will offer potential added value, with supporting evidence.
9	Significantly exceeds the criterion	
8	GOOD	Satisfies the criterion with minor additional benefits. Above average demonstration by the Respondent of the relevant ability, understanding, experience, skills, resource and quality measures required to meet the criterion. Proposal identifies factors that will offer potential added value, with supporting evidence.
7	Exceeds the criterion in some areas	
6	ACCEPTABLE	Satisfies the criterion. Demonstration by the Respondent of the relevant ability, understanding, experience, skills, resource, and quality measures required to meet the criterion, with supporting evidence.
5	Meets the criterion in full, but at a minimal level	
4	MINOR RESERVATIONS	Does not fully meet the requirement. Some minor reservations of the Respondent's relevant ability, understanding, experience, skills, resource and quality measures required to meet the criterion, with little or no supporting evidence.
3	Marginally deficient	
2	SERIOUS RESERVATIONS	Does not fully meet the requirement. Considerable reservations of the respondent's relevant ability, understanding, experience, skills, resource and quality measures required to meet the criterion, with little or no supporting evidence.
	Significant issues that need to be addressed	

SECTION 4: ROI Process, Terms and Conditions

Note to suppliers and Respondents

- In managing this procurement the Buyer will endeavour to act fairly and reasonably in all of its dealings with interested suppliers and Respondents, and to follow due process which is open and transparent.
- This section contains the government's standard ROI Process, Terms and Conditions (shortened to ROI-Terms) which apply to this procurement. Any variation to the ROI-Terms will be recorded in Section 1, [paragraph 1.6](#). Check to see if any changes have been made for this ROI.
- Words and phrases that have a special meaning are shown by the use of capitals e.g. Respondent, which means '*a person, organisation, business or other entity that submits a Registration in response to the ROI. The term Respondent includes its officers, employees, contractors, consultants, agents and representatives. The term Respondent differs from a supplier, which is any other business in the market place that does not submit a Registration.*' [Definitions](#) are at the end of this section.
- If you have any questions about the ROI-Terms please get in touch with our [Point of Contact](#).

Standard ROI process



Preparing and submitting a Registration

4.1 Preparing a Registration

- a. Respondents are to use the Response Form provided and include all information requested by the Buyer in relation to the ROI.
- b. By submitting a Registration the Respondent accepts that it is bound by the ROI Process, Terms and Conditions (ROI-Terms) contained in Section 4 (as varied by Section 1, paragraph 1.6, if applicable).
- c. Each Respondent will:
 - i. examine the ROI and any documents referenced in the ROI and any other information provided by the Buyer
 - ii. if appropriate, obtain independent advice before submitting a Registration
 - iii. satisfy itself as to the correctness and sufficiency of its Registration.
- d. There is no expectation or obligation for Respondents to submit Registrations in response to the ROI solely to remain on any prequalified or registered supplier list. Any Respondent on such a list will not be penalised for failure to submit a Registration.



4.2 Respondents' Deadline for Questions

- a. Each Respondent should satisfy itself as to the interpretation of the ROI. If there is any perceived ambiguity or uncertainty in the ROI document/s Respondents should seek clarification before the Deadline for Questions.
- b. All requests for clarification must be made by email to the Buyer's Point of Contact. The Buyer will respond to requests in a timely manner, but not later than the deadline for the Buyer to answer Respondent questions in Section 1, paragraph 1.2.a, if applicable.
- c. If the Buyer considers a request to be of sufficient importance to all Respondents it may provide details of the question and answer to other Respondents. In doing so the Buyer

may summarise the Respondent's question and will not disclose the Respondent's identity. The question and answer may be posted on GETS and/or emailed to participating Respondents. A Respondent may withdraw a request at any time.

- d. In submitting a request for clarification a Respondent is to indicate, in its request, any information that is commercially sensitive. The Buyer will not publish such commercially sensitive information. However, the Buyer may modify a request to eliminate such commercially sensitive information, and publish this and the answer where the Buyer considers it of general significance to all Respondents. In this case, however, the Respondent will be given an opportunity to withdraw the request or remove the commercially sensitive information.



4.3 Submitting a Registration

- a. Each Respondent is responsible for ensuring that its Registration is received by the Buyer at the correct address on or before the Deadline for Registrations. The Buyer will acknowledge receipt of each Registration.
- b. The Buyer intends to rely on the Respondent's Registration and all information provided by the Respondent (e.g. in correspondence). In submitting a Registration and communicating with the Buyer each Respondent should check that all information it provides to the Buyer is:
 - i. true, accurate and complete and not misleading in any material respect
 - ii. does not contain intellectual property that will breach a third party's rights.
- c. Where the Buyer requires the Registration to be delivered in hard and soft copies, the Respondent is responsible for ensuring that both the hard and soft copies are identical.



Assessing Registrations

4.4 Evaluation panel

- a. The Buyer will convene an evaluation panel comprising members chosen for their relevant expertise and experience. In addition, the Buyer may invite independent advisors to evaluate any Registration, or any aspect of any Registration.

4.5 Third party information

- a. Each Respondent authorises the Buyer to collect additional information, except commercially sensitive pricing information, from any relevant third party (such as a referee or a previous or existing client) and to use that information as part of its evaluation of the Respondent's Registration.
- b. Each Respondent is to ensure that all referees listed in support of its Registration agree to provide a reference.
- c. To facilitate discussions between the Buyer and third parties each Respondent waives any confidentiality obligations that would otherwise apply to information held by a third party, with the exception of commercially sensitive pricing information.



4.6 Buyer's clarification

- a. The Buyer may, at any time, request from any Respondent clarification of its Registration as well as additional information about any aspect of its Registration. The Buyer is not required to request the same clarification or information from each Respondent.
- b. The Respondent must provide the clarification or additional information in the format requested. Respondents will endeavour to respond to requests in a timely manner. The Buyer may take such clarification or additional information into account in evaluating the Registration.
- c. Where a Respondent fails to respond adequately or within a reasonable time to a request for clarification or additional information, the Buyer may cease evaluating the Registration and may eliminate the Registration from the process.

4.7 Evaluation and shortlisting



- a. The Buyer will base its initial evaluation on the Registrations submitted in response to the invitation. This evaluation will be in accordance with the Evaluation Approach set out in the ROI. The Buyer may adjust its evaluation of a Registration following consideration of any clarification or additional information as described in paragraphs 4.6 and 4.7.
- b. In deciding which Respondent/s to shortlist the Buyer may take into account any of the following additional information:
 - i. the results from due diligence
 - ii. any matter that materially impacts on the Buyer's trust and confidence in the Respondent
 - iii. any relevant information that the Buyer may have in its possession.
- c. The Buyer will advise Respondents if they have been shortlisted or not. Being shortlisted does not constitute acceptance by the Buyer of the Respondent's Registration, or imply or create any obligation on the Buyer to enter into negotiations with, or award a Contract for delivery of the Requirements to any shortlisted Respondent/s. At this stage in the ROI process the Buyer will not make public the names of the shortlisted Respondents.

4.8 Respondent's debrief



- a. At any time after shortlisting Respondents, the Buyer will offer Respondents who have not been shortlisted a debrief. Each Respondent will have 30 Business Days from the date of offer to request a debrief. When a Respondent requests a debrief, the Buyer will provide the debrief within 30 Business Days of the date of the request, or the date the Contract is signed, whichever is later.
- b. The debrief may be provided by letter, email, phone or at a meeting. The debrief will:
 - i. provide the reasons why the Registration was or was not successful
 - ii. explain how the Registration performed against the pre-conditions (if applicable) and the evaluation criteria
 - iii. indicate the Registration's relative strengths and weaknesses
 - iv. explain, in general terms, the relative advantage/s of the shortlisted Registration/s
 - v. seek to address any concerns or questions from the Respondent
 - vi. seek feedback from the Respondent on the ROI process.

4.9 Issues and complaints



- a. A Respondent may, in good faith, raise with the Buyer any issue or complaint about the ROI, or the ROI process at any time.
- b. The Buyer will consider and respond promptly and impartially to the Respondent's issue or complaint.
- c. The Buyer and Respondent each agree to act in good faith and use its best endeavours to resolve any issue or complaint that may arise in relation to the ROI.
- d. The fact that a Respondent has raised an issue or complaint is not to be used by the Buyer to unfairly prejudice the Respondent's ongoing participation in the ROI process or future contract opportunities.

Standard ROI conditions



4.10 Buyer's Point of Contact

- a. All enquiries regarding the ROI must be directed by email to the Buyer's Point of Contact. Respondents must not directly or indirectly approach any representative of the Buyer, or any other person, to solicit information concerning any aspect of the ROI.
- b. Only the Point of Contact, and any authorised person of the Buyer, are authorised to communicate with Respondents regarding any aspect of the ROI. The Buyer will not be bound by any statement made by any other person.
- c. The Buyer may change the Point of Contact at any time. The Buyer will notify Respondents

of any such change. This notification may be posted on GETS or sent by email.

- d. Where a Respondent has an existing contract with the Buyer then business as usual communications, for the purpose of managing delivery of that contract, will continue using the usual contacts. Respondents must not use business as usual contacts to lobby the Buyer, solicit information or discuss aspects of the ROI.



4.11 Conflict of Interest

- a. Each Respondent must complete the Conflict of Interest declaration in the Response Form. and must immediately inform the Buyer should a Conflict of Interest arise during the ROI process. A material Conflict of Interest may result in the Respondent being disqualified from participating further in the ROI process.

4.12 Ethics

- a. Respondents must not attempt to influence or provide any form of personal inducement, reward or benefit to any representative of the Buyer in relation to the ROI.
- b. A Respondent who attempts to do anything prohibited by paragraphs 4.10.a and d. and 4.12.a. may be disqualified from participating further in the ROI.
- c. The Buyer reserves the right to require additional declarations, or other evidence from a Respondent, or any other person, throughout the ROI process to ensure probity of the ROI process.

4.13 Anti-collusion and bid rigging

- a. Respondents must not engage in collusive, deceptive or improper conduct in the preparation of their Registrations or other submissions or in any discussions with the Buyer. Such behaviour will result in the Respondent from being disqualified from participating further in the ROI process. The Respondent warrants that its Registration has not been prepared in collusion with a Competitor.
- b. The Buyer reserves the right, at its discretion, to report suspected collusive or anti-competitive conduct by Respondents to the appropriate authority and to give that authority all relevant information including a Respondent's Registration.

4.14 Confidential Information

- a. The Buyer and Respondent will each take reasonable steps to protect Confidential Information and, subject to paragraph 4.14.c. and without limiting any confidentiality undertaking agreed between them, will not disclose Confidential Information to a third party without the other's prior written consent.
- b. The Buyer and Respondent may each disclose Confidential Information to any person who is directly involved in the ROI process on its behalf, such as officers, employees, consultants, contractors, professional advisors, evaluation panel members, partners, principals or directors, but only for the purpose of participating in the ROI.
- c. Respondents acknowledge that the Buyer's obligations under paragraph 4.14.a. are subject to requirements imposed by the Official Information Act 1982 (OIA), the Privacy Act 1993, parliamentary or constitutional convention and any other obligations imposed by the law. The Buyer will not be in breach of its obligations if Confidential Information is disclosed by the Buyer to the appropriate authority because of suspected collusive or anti-competitive tendering behaviour. Where the Buyer receives an OIA request that relates to a Respondent's Confidential Information the Buyer will consult with the Respondent and may ask the Respondent to explain why the information is considered by the Respondent to be confidential or commercially sensitive.

4.15 Confidentiality of ROI information

- a. For the duration of the ROI, to the date of the announcement of the Successful Respondent, or the end of the procurement process, the Respondent agrees to keep the ROI strictly confidential and not make any public statement to any third party in relation to any aspect of the ROI, the ROI process or the award of any Contract without the Buyer's prior written consent.



- b. A Respondent may disclose information relating to the ROI to any person described in paragraph 4.14.b. but only for the purpose of participating in the ROI. The Respondent must take reasonable steps to ensure that such recipients do not disclose Confidential Information to any other person or use Confidential Information for any purpose other than responding to the ROI.

4.16 Costs of participating in the ROI process

- a. Each Respondent will meet its own costs associated with the preparation and presentation of its Registration and any negotiations.

4.17 Ownership of documents

- a. The ROI and its contents remain the property of the Buyer. All Intellectual Property rights in the ROI remain the property of the Buyer or its licensors. The Buyer may request the immediate return or destruction of any or all ROI documents and any copies. Respondents must comply with any such request in a timely manner.
- b. All documents forming the Registration will, when delivered to the Buyer, become the property of the Buyer. Registrations will not be returned to Respondents at the end of the ROI process.
- c. Ownership of Intellectual Property rights in the Registration remain the property of the Respondent or its licensors. However, the Respondent grants to the Buyer a non-exclusive, non-transferable, perpetual licence to retain, use, copy and disclose information contained in the Registration for any purpose related to the ROI process.

4.18 No binding legal relations

- a. Neither the ROI, nor the ROI process, creates a process contract or any legal relationship between the Buyer and any Respondent, except in respect of:
 - i. the Respondent's declaration in its Registration
 - ii. the Respondent's statements, representations and/or warranties in its Registration and in its correspondence with the Buyer
 - iii. the Evaluation Approach to be used by the Buyer to assess Registrations as set out in Section 3, and in the ROI-Terms (as varied by Section 1, paragraph 1.6, if applicable)
 - iv. the standard ROI conditions set out in paragraphs 4.10 to 4.23
 - v. any other matters expressly described as binding obligations in Section 1, paragraph 1.6.
- b. Each exception in paragraph 4.18.a. is subject only to the Buyer's reserved rights in paragraph 4.20.
- c. Except for the legal obligations set out in paragraph 4.18.a. no legal relationship is formed between the Buyer and any Respondent unless and until a Contract is entered into between those parties.

4.19 Elimination

- a. The Buyer may exclude a Respondent from participating in the ROI process if the Buyer has evidence of any of the following, and is considered by the Buyer to be material to the ROI:
 - i. the Respondent has failed to provide all information requested, or in the correct format, or materially breached a term or condition of the ROI process
 - ii. the Registration contains a material error, omission or inaccuracy
 - iii. the Respondent is in bankruptcy, receivership or liquidation
 - iv. the Respondent has made a false declaration
 - v. there is a serious performance issue in a historic or current contract delivered by the Respondent
 - vi. the Respondent has been convicted of a serious crime or offence
 - vii. there is professional misconduct or an act or omission on the part of the Respondent



- which adversely reflects on the integrity of the Respondent
- viii. the Respondent has failed to pay taxes, duties or other levies
- ix. the Respondent represents a threat to national security or the confidentiality of sensitive government information
- x. the Respondent is a person or organisation designated as a terrorist by New Zealand Police.

4.20 Buyer's additional rights

- a. Despite any other provision in the ROI the Buyer may, on giving due notice to Respondents:
 - i. amend, suspend, cancel and/or re-issue the ROI, or any part of the ROI
 - ii. make any material change to the ROI (including any change to the timeline, Requirements or Evaluation Approach) on the condition that Respondents are given a reasonable time within which to respond to the change.
- b. Despite any other provision in the ROI the Buyer may:
 - i. accept a late Registration if it is the Buyer's fault that it is received late
 - ii. in exceptional circumstances, accept a late Registration where it considers that there is no material prejudice to other Respondents. The Buyer will not accept a late Registration if it considers that there is risk of collusion on the part of a Respondent, or the Respondent may have knowledge of the content of any other Registration
 - iii. in exceptional circumstances, answer questions submitted after the Clarification Period ends
 - iv. accept or reject any Registration, or part of a Registration
 - v. accept or reject any non-compliant, non-conforming or alternative Registration
 - vi. decide not to enter into a Contract with any Respondent
 - vii. liaise or negotiate with any Respondent without disclosing this to, or doing the same with, any other Respondent
 - viii. provide or withhold from any Respondent information in relation to any question arising in relation to the ROI. Information will usually only be withheld if it is deemed unnecessary, is commercially sensitive to a Respondent, is inappropriate to supply at the time of the request or cannot be released for legal reasons
 - ix. amend the Proposed Contract at any time, including during negotiations with a shortlisted Respondent
 - x. waive irregularities or requirements in the ROI process where it considers it appropriate and reasonable to do so.
- c. The Buyer may request that a Respondent agrees to the Buyer:
 - i. selecting any individual element/s of the Requirements that is offered in a Registration and capable of being delivered separately, unless the Registration specifically states that the Registration, or elements of the Registration, are to be taken collectively
 - ii. selecting two or more Respondents to deliver the Requirements as a joint venture or consortium.

4.21 New Zealand law

- a. The laws of New Zealand shall govern the ROI process and each Respondent agrees to submit to the exclusive jurisdiction of the New Zealand courts in respect of any dispute concerning the ROI or the ROI process.

4.22 Disclaimer

- a. The Buyer will not be liable in contract, tort, equity, or in any other way whatsoever for any direct or indirect damage, loss or cost incurred by any Respondent or any other



person in respect of the ROI process.

- b. Nothing contained or implied in the ROI, or ROI process, or any other communication by the Buyer to any Respondent shall be construed as legal, financial or other advice. The Buyer has endeavoured to ensure the integrity of such information. However, it has not been independently verified and may not be updated.
- c. To the extent that liability cannot be excluded, the maximum aggregate liability of the Buyer is \$1.

4.23 Precedence

- a. Any conflict or inconsistency in the documents forming the ROI shall be resolved by giving precedence in the following descending order:
 - i. Section 1, paragraph 1.6
 - ii. Section 4 (ROI-Terms)
 - iii. all other Sections of this ROI document
 - iv. any additional information or document provided by the Buyer to Respondents through the Buyer's Point of Contact or GETS.
- b. If there is any conflict or inconsistency between information or documents having the same level of precedence the later information or document will prevail.

Definitions

In relation to this ROI the following words and expressions have the meanings described below.

Advance Notice	A notice published by the buyer on GETS in advance of publishing the ROI. An Advance Notice alerts the market to a contract opportunity. Where used, an Advance Notice forms part of the ROI.
Business Day	Any week day in New Zealand, excluding Saturdays, Sundays, New Zealand (national) public holidays and all days from Boxing Day up to and including the day after New Year's Day.
Buyer	The Buyer is the government agency that has issued the call for Registrations of interest through a ROI with the intent of purchasing the goods or services described in the Requirements. The term Buyer includes its officers, employees, contractors, consultants, agents and representatives.
Competitors	Any other business that is in competition with a Respondent either in relation to the goods or services sought under the ROI or in general.
Confidential Information	Information that: a. is by its nature confidential b. is marked by either the Buyer or a Respondent as 'confidential', 'commercially sensitive', 'sensitive', 'in confidence', 'top secret', 'secret', 'classified' and/or 'restricted' c. is provided by the Buyer, a Respondent, or a third party in confidence d. the Buyer or a Respondent knows, or ought to know, is confidential. Confidential information does not cover information that is in the public domain through no fault of either the Buyer or a Respondent.
Conflict of Interest	A Conflict of Interest arises if a Respondent's personal or business interests or obligations do, could, or be perceived to, conflict with its obligations to the Buyer under the ROI or in the provision of the goods or services. It means that the Respondent's independence, objectivity or impartiality can be called into question. A Conflict of

	Interest may be: a. actual: where the conflict currently exists b. potential: where the conflict is about to happen or could happen, or c. perceived: where other people may reasonably think that a person is compromised.
Contract	The written contract/s entered into by the Buyer and Successful Respondent/s for the delivery of the Requirements.
Deadline for Registration	The deadline that Registrations are to be delivered or submitted to the Buyer as stated in Section 1, paragraph 1.2.
Deadline for Questions	The deadline for suppliers to submit questions to the Buyer as stated in Section 1, paragraph 1.2, if applicable.
Evaluation Approach	The approach used by the Buyer to evaluate Registrations as described in Section 3, the ROI-Terms (as varied by Section 1, paragraph 1, if applicable.).
GETS	Government Electronic Tenders Service www.gets.govt.nz
GST	The goods and services tax payable in accordance with the New Zealand Goods and Services Tax Act 1985.
Intellectual Property	All intellectual property rights and interests, including copyright, trademarks, designs, patents and other proprietary rights, recognised or protected by law.
Point of Contact	The Buyer and each Respondent are required to appoint a Point of Contact. This is the channel to be used for all communications during the ROI process. The Buyer's Point of Contact is identified in Section 1, paragraph 1.3. The Respondent's Point of Contact is identified in its Registration.
Registration	The response a Respondent submits in reply to the Buyer's ROI. It comprises the Response Form, the Respondent's registration and all other information submitted by a Respondent.
ROI	Means the Buyer's call for Registrations of Interest.
Registration of Interest	The Buyer's call for Registrations of Interest comprises the Advance Notice (where used), this ROI document (including the ROI-Terms) and any other schedule, appendix or document attached to ROI, and any subsequent information provided by the Buyer to Respondents through the Buyer's Point of Contact or GETS.
ROI-Terms	Means the Process, Terms and Conditions that apply to this Registration of Interest Conditions as described in Section 4.
ROI Process, Terms and Conditions (shortened to ROI-Terms)	The government's standard terms and conditions that apply to ROIs as described in Section 4. These may be varied at the time of the release of the ROI by the Buyer in Section 1, paragraph 1.6. These may be varied subsequent to the release of the ROI by the Buyer on giving notice to Respondents.
Requirements	The goods and/or services described in Section 2 which the Buyer intends to purchase.
Respondent	A person, organisation, business or other entity that submits a Registration in response to the ROI. The term Respondent includes its officers, employees, contractors, consultants, agents and representatives. The term Respondent differs from a supplier, which is any other business in the market place that does not submit a Registration.'
Response Form	The form and declaration prescribed by the Buyer and used by a Respondent to respond to the ROI, duly completed and submitted by a Respondents as part of its Registration.

